

SENATE No. 2192

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to competition for specification of alternative types of culvert pipes.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 2192

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 2192) of Patrick M. O'Connor for legislation relative to competition for specification of alternative types of culvert pipes. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2039 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to competition for specification of alternative types of culvert pipes.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 30 of the General Laws, as so appearing, is hereby amended by inserting the
2 following new section:-

3 Section 38B. Competition for Specification of Alternative Types of Culvert Pipes.

4 State and municipal agencies shall have the autonomy to determine culvert and storm
5 sewer material types to be included in the construction of state funded roadways provided that
6 the pipe material selected (i) is designed using the latest revision of the American Association of
7 State Highway and Transportation Officials (AASHTO)'s Load Resistance Factor Design
8 Specifications, or any future design methodology accepted as the prevailing AASHTO
9 specification, using a product performance life of not less than 75 years, (ii) is constructed to,

10 and inspected for structural integrity, using as a minimum the current AASHTO installation
11 details and post-installation testing requirements prior to final acceptance, (iii) is manufactured
12 from non-combustible and non-toxic materials and is not susceptible to hydrostatic flotation
13 forces when located within Evacuation Route Right-of-Ways, and (iv) maintains hydraulic
14 design capacity for the project design life.